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Introduced by M. of A. GLICK, LUNSFORD, ROSENTHAL, COLTON, STECK, SIMONE, SHIMSKY, SIMON, RAMOS, TAYLOR, LEE, KELLES, DINOWITZ, DURSO, GANDOLFO, NOVAKHOV, STERN, JACOBSON, ROZIC, RAJKUMAR, McMAHON, ANDERSON, KIM, BARRETT, SANTABARBARA, CLARK, RA, FORREST, BICHOTTE HERMELYN, R. CARROLL, PAULIN, SEAWRIGHT, SHRESTHA, SLATER, CUNNINGHAM, EACHUS, SAYEGH, GALLAGHER, OTIS, LEVENBERG, K. BROWN, REYES, WOERNER, HUNTER, BENEDETTO, MEEKS, BRONSON, PHEFFER AMATO, MANKTELOW, JENSEN, GALLAHAN, BURDICK, RAGA, LUPARDO, GONZALEZ-ROJAS, WEPRIN, SIMPSON, BORES, BENDETT, DeSTEFANO, HEVESI, BLUMENCRANZ, TAPIA, KAY, GRIFFIN, ROMERO, SCHIAVONI, ALVAREZ, WRIGHT, KASSAY, VALDEZ, LASHER, McDONALD, SOLAGES, MITAYNES, STIRPE, DAVILA, GIBBS, DE LOS SANTOS, ZINERMAN, LAVINE, CONRAD, P. CARROLL, BURKE, DILAN, RIVERA, WILLIAMS, BURROUGHS, O'PHARROW, HOOKS, MAGNARELLI, MORENO -- read once and referred to the Committee on Environmental Conservation -- reported and referred to the Committee on Codes -- reported and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Ways and Means in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to the regulation of ingredients in personal care products and cosmetics

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. Short title. This act shall be known and may be cited as
- 2 the "beauty justice act".
- 3 § 2. Legislative findings and intent. Thousands of chemicals are used
- 4 in cosmetics and personal care products. Some of these chemicals are
- 5 associated with asthma, allergies, hormone disruption, neurodevelopmental
- 6 problems, infertility, even cancer. Exposure to personal care and
- 7 cosmetic products typically begins in infancy, with products such as

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [] is old law to be omitted.

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1 baby shampoo, lotion, and diaper cream, and continues throughout their
2 lifespan. According to the Environmental Working Group, "on average,
3 women use 12 personal care products a day, exposing themselves to 168
4 chemical ingredients. Men use six, exposing themselves to 85 unique
5 chemicals."

6 Further, The National Institutes of Health (NIH) conducted an eight-
7 year study of over 46,000 women who used permanent hair dyes and
8 straighteners. They found that women of color who regularly used dyes
9 and straighteners had a 45 percent higher breast cancer risk. White
10 women faced a 7 percent higher breast cancer risk.

11 European Union countries prohibit (with few exceptions) substances
12 classified as carcinogenic, mutagenic, or toxic for reproduction in
13 cosmetic products. The Canadian government regularly updates a Cosmetic
14 Ingredient Hotlist that includes hundreds of chemicals and contaminants
15 prohibited and restricted from cosmetics, such as formaldehyde, triclo-
16 san, and more. Furthermore, over 40 countries including Japan, Cambodia,
17 and Vietnam, have stricter restrictions on chemicals in personal care
18 products than does the United States.

19 Moreover, regarding the safety of using personal care products,
20 the federal Modernization of Cosmetics Regulation Act of 2022 is the
21 first federal law to significantly update the Food, Drug, and Cosmetic
22 Act. However, the Act fails to meaningfully restrict the use of harmful
23 chemicals in personal care/cosmetic products, and explicitly grants
24 states the ability to enact such restrictions.

25 Therefore, the legislature finds and declares that federal
26 restrictions of harmful chemicals in personal care and cosmetic products
27 are inadequate to educate and protect consumers and salon workers, and
28 that it shall be the policy of the state to restrict chemicals that
29 may harm the health of New Yorkers during production, use, or disposal
30 of personal care products and cosmetic products.

31 § 3. Article 37 of the environmental conservation law is amended by
32 adding a new title 12 to read as follows:

33 TITLE XII

34 BEAUTY JUSTICE ACT

35 Section 37-1201. Definitions.

36 37-1203. Sales prohibition.

37 37-1205. Identification of safer alternatives.

38 37-1207. Regulations.

39 § 37-1201. Definitions.

40 As used in this title, unless the context requires otherwise:

41 1. "Cosmetic product" shall mean a cosmetic product as defined in
42 section 37-0117 of this article.

43 2. "Intentionally added ingredient" shall mean any element or compound
44 that a manufacturer has intentionally added to a personal care product,
45 and which has a functional or technical effect in the finished product,
46 including, but not limited to, the components of intentionally added
47 fragrance, flavoring and colorants, and the intentional breakdown
48 products of an added element or compound that also has a functional or
49 technical effect on the finished product.

50 3. "Manufacturer" shall mean any person, firm, association, partner-
51 ship, limited liability company, or corporation which produces,
52 prepares, formulates, or compounds a personal care product, or whose
53 brand name is affixed to such product. In the case of a personal care
54 product imported into the United States, "manufacturer" shall mean the
55 importer or first domestic distributor of the product if the entity that

1 manufactures the product or whose brand name is affixed to the product
2 does not have a presence in the United States.

3 4. "Personal care product" shall mean a personal care product as
4 defined in section 37-0117 of this article.

5 5. "Restricted substance" shall mean the following:

6 (a) the following heavy metals and any compounds containing the
7 following heavy metals: arsenic (CAS 7440-38-2), cadmium (CAS
8 7440-43-9), cadmium compounds, chromium (CAS 7440-47-3), lead (CAS
9 7439-92-1), lead compounds, and nickel (CAS 7440-02-0);

10 (b) isobutylparaben (CAS 4247-02-3) and isopropylparaben (CAS
11 4191-73-5);

12 (c) ortho-phthalates and their esters;

13 (d) per- and polyfluoroalkyl substances, as defined in subdivision
14 seven of section 37-0101 of this article, detected by total organic
15 fluorine analysis;

16 (e) formaldehyde (CAS 50-00-0) and formaldehyde releasers such as:
17 paraformaldehyde (CAS 30525-89-4), quaternium-15 (CAS 51229-78-8), and
18 methylene glycol (CAS 463-57-0), provided that in the case of any
19 formaldehyde releaser, treatment as a restricted substance shall be
20 subject to subdivision two of section 37-1203 of this title;

21 (f) benzophenone (CAS 119-61-9);

22 (g) benzene (CAS 71-43-2), ethylene oxide (CAS 75-21-8), toluene (CAS
23 108-88-3), naphthalene (CAS 91-20-3), nickel (metallic) (CAS 7440-02-0),
24 styrene (CAS 100-42-5), and xylene (CAS 1330-20-7);

25 (h) asbestos (CAS 1332-21-4);

26 (i) cyclotetrasiloxane (CAS 556-67-2);

27 (j) m-phenylenediamine (CAS 108-45-2) and o-phenylenediamine (CAS
28 95-54-5);

29 (k) triclosan (CAS 3380-34-5);

30 (l) diethanolamine (CAS 111-42-2);

31 (m) Dibutyl phthalate (CAS 84-72-2);

32 (n) Diethylhexyl phthalate (CAS 117-81-7);

33 (o) Lily aldehyde (CAS 80-54-6);

34 (p) Acetaldehyde (CAS 75-07-0);

35 (q) Cyclohexylamine (CAS 108-91-8);

36 (r) Phytonadione (CAS 84-80-0);

37 (s) Sodium perborate (CAS 15120-21-5);

38 (t) Trichloroacetic acid (CAS 76-03-9);

39 (u) Tricresyl phosphate (CAS 1330-78-5);

40 (v) Vinyl acetate (CAS 108-05-4);

41 (w) 2-Chloracetamide (CAS 79-07-2);

42 (x) Allyl isothiocyanate (CAS 57-06-7);

43 (y) Anthraquinone (CAS 84-65-1);

44 (z) Malachite green (CAS 569-64-2);

45 (aa) Oil from seeds of Laurus nobilis L. (CAS 84603-73-6);

46 (bb) Pyrogallol (CAS 87-66-1);

47 (cc) C.I disperse blue 1 (CAS 2475-45-8);

48 (dd) Trisodium nitrilotriacetate (CAS 5064-31-3);

49 (ee) The following boron substances:

50 (i) Perboric acids:

51 A. Sodium salt (CAS 11138-47-9);

52 B. Sodium salt, monohydrate (CAS 12040-72-1);

53 C. Sodium perborate nonohydrate (CAS 10332-33-9);

54 (ii) Boric acid (CAS 10043-35-3 and 11113-50-1);

55 (iii) Borates, tetraborates, octaborates, and boric acid salts and
56 esters, including all of the following:

1 A. Disodium octaborate anhydrous (CAS 12008-41-2);
 2 B. Disodium octaborate tetrahydrate (CAS 12280-03-4);
 3 C. 2-Aminoethanol, monoester with boric acid (CAS 10377-81-8);
 4 D. 2-Hydroxypropyl, ammonium dihydrogen orthoborate (CAS 68003-13-4);
 5 E. Potassium borate, boric acid potassium salt (CAS 12712-38-8);
 6 F. Trioctyldodecyl borate;
 7 G. Zinc borate (CAS 1332-07-6);
 8 H. Sodium borate, disodium tetraborate anhydrous; boric acid, sodium
 9 salt (CAS 1330-43-4);
 10 I. Tetraboron disodium heptaoxide, hydrate (CAS 12267-73-1);
 11 J. Orthoboric acid, sodium salt (CAS 13840-56-7);
 12 K. Disodium tetraborate decahydrate; borax decahydrate (CAS
 13 1303-96-4);
 14 L. Disodium tetraborate pentahydrate; borax pentahydrate (CAS
 15 12179-04-3);
 16 (ff) C.I. disperse blue 3 (CAS 2475-46-9);
 17 (gg) Basic green 1 (CAS 633-03-4);
 18 (hh) Basic Blue 7 (CAS 2390-60-5);
 19 (ii) 3(or 5) - ((4-(benzylmethylamino) phenyl) azo) -1, 2 - (or1, 4) -
 20 dimethyl-1H-1, 2, 4-triazolium and its salts (CAS 89959-98-8 and
 21 12221-69-1);
 22 (jj) Basic Violet 4 (CAS 2390-59-2);
 23 (kk) Basic blue 3 (CAS 33203-82-6); and
 24 (ll) Basic blue 9 (CAS 61-73-4).

25 § 37-1203. Sales prohibition.

26 1. Effective January first, two thousand thirty, no person shall sell
 27 or offer for sale in this state a personal care product or cosmetic
 28 product containing: (a) a restricted substance as an intentionally added
 29 ingredient in any amount, or (b) lead (CAS 7439-92-1) or lead compounds
 30 at or above a level that the department shall establish in regulation
 31 that is the lowest level that can feasibly be achieved, provided that
 32 the department shall review such level every five years to determine
 33 whether it should be lowered.

34 2. (a) The department's determinations regarding chemicals that
 35 release formaldehyde, pursuant to paragraph (e) of subdivision five of
 36 section 37-1201 of this title, shall be adopted by regulation. The
 37 department shall identify a list of chemicals used in cosmetic products
 38 and personal care products that release formaldehyde that may be deemed
 39 restricted substances and subject to the restrictions of subdivision
 40 one of this section. In establishing such list, the department should
 41 consider: (i) estimated prevalence of use; (ii) potential to reduce
 42 disproportionate exposure; and (iii) other information deemed relevant
 43 by the department.

44 (b) The department may identify for restriction an initial set of no
 45 more than ten of the listed chemicals used in personal care products and
 46 cosmetic products that release formaldehyde. Any initial classification
 47 as restricted substances shall take effect one year after the depart-
 48 ment's adoption of regulations required by this subdivision and be
 49 subject to the restrictions of subdivision one of this section.

50 (c) Classification as restricted substances on the remaining listed
 51 chemicals used in personal care products and cosmetic products that
 52 release formaldehyde may take effect two years after the department's
 53 adoption of regulations required by this subdivision and shall be
 54 subject to the restrictions of subdivision one of this section.

55 (d) The department may conduct additional rulemaking activities to
 56 develop supplemental lists of chemicals that release formaldehyde and

1 adopt additional restrictions necessary to protect the health and safety
2 of product users.

3 3. (a) No person that sells or offers for sale any personal care prod-
4 uct or cosmetic product shall be held in violation of this section if
5 they can show that they relied in good faith on the written assurance of
6 the manufacturer that such personal care product or cosmetic product
7 meets the requirements of this title. Such written assurance shall take
8 the form of a certificate of compliance stating that the personal care
9 product or cosmetic product is in compliance with the requirements of
10 this title. The certificate of compliance shall be signed by an author-
11 ized official of the manufacturer.

12 (b) In addition to any other applicable penalties, it shall be a
13 violation of this section to provide a certificate of compliance as
14 contemplated by this subdivision when the applicable personal care prod-
15 uct or cosmetic product does not satisfy the limitations on the presence
16 of restricted substances set forth in this title.

17 § 37-1205. Identification of safer alternatives.

18 By January first, two thousand twenty-nine, the department, in consul-
19 tation with the department of health, shall make use of existing infor-
20 mation to identify and assess the hazards of chemicals or chemical
21 classes that can provide the same or similar function in personal care
22 products and cosmetic products as the chemicals or chemical classes
23 listed in section 37-1201 of this title and that can impact vulnerable
24 populations. In doing so they may consult with the New York state
25 pollution prevention institute and the interstate chemicals clearing-
26 house. The department shall make such information publicly available.

27 § 37-1207. Regulations.

28 Within one year of the effective date of this section, the department
29 shall adopt rules and regulations necessary for the implementation of
30 this title. When adopting such rules and regulations, the department
31 shall consider:

32 (a) relevant research;

33 (b) laws and policies in other states; and

34 (c) input from relevant stakeholders including but not limited to
35 representatives from independent cosmetologists, small businesses offer-
36 ing cosmetology services, such as beauty salons, manufacturers of
37 cosmetic products and personal care products, and trade associations
38 that represent manufacturers of cosmetic products and personal care
39 products.

40 § 4. Section 71-3703 of the environmental conservation law is amended
41 by adding a new subdivision 8 to read as follows:

42 8. Any person who violates any of the provisions of, or who fails to
43 perform any duty imposed by, section 37-1203 of this chapter or any
44 rule or regulation promulgated pursuant thereto, shall be liable for a
45 civil penalty not to exceed one thousand dollars for each day during
46 which such violation continues, and in addition thereto, such
47 person may be enjoined from continuing such violation. Such person shall
48 for a second violation be liable to the people of the state for a
49 civil penalty not to exceed two thousand five hundred dollars for each
50 day during which such violation continues.

51 § 5. Severability. If any provision of this act, or any application of
52 any provision of this act, is held to be invalid, or to violate or be
53 inconsistent with any federal law or regulation, that shall not affect
54 the validity or effectiveness of any other provision of this act, or of
55 any other application of any provision of this act, which can be given

1 effect without that provision or application; and to that end, the
2 provisions and applications of this act are severable.
3 § 6. This act shall take effect one year after it shall have become a
4 law. Effective immediately, the addition, amendment and/or repeal of any
5 rule or regulation necessary for the implementation of this act on its
6 effective date are authorized to be made and completed on or before such
7 effective date.